IP & AI ASSETS: STRATEGIC OWNERSHIP

Technology • Data • Innovation • Competitive Advantage • Enterprise Value

For founders, executives and innovation-driven companies

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INTRODUCTION

Matyas Kolsofszki

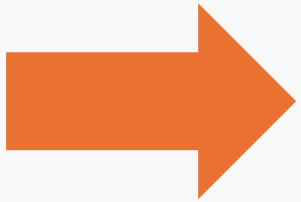
- Founder & CEO of 384k Ventures
- Venture builder, strategist and innovation ecosystem professional
- Focused on startup and scaleup growth, commercialization and strategic business development
- Extensive experience supporting technology-driven companies
- Works across innovation, fundraising readiness, business development and intangible asset strategy
- Advisor to founders, investors and innovation-driven organizations

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INTRODUCTION

384k Ventures
Supporting startups, scaleups and innovation ecosystems through growth, commercialization and investor-readiness initiatives.

- Venture building
- Strategic growth
- Innovation ecosystems
- Commercialization
- Fundraising readiness
- Competitive advantage strategy
- Intangible asset management
- Technology-driven businesses



- Identify hidden value
- Build defensible competitive advantages
- Improve fundraising readiness
- Establish commercialization pathways
- Reduce strategic business risks
- Increase enterprise value

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If you don`t have competitive advantages, don`t compete.

Jack Welch, CEO of General Electric

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AGENDA

1. The global intangible economy
2. Understanding intangible assets
3. Types of intangible assets
4. Protection mechanisms
5. Portfolio management
6. Risks and threats
7. Valuation
8. Commercialization
9. Fundraising and investor readiness
10. Key takeaways

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THE GLOBAL INTANGIBLE ECONOMY

- Approximately **92% of S&P 500 market value is now attributable to intangible assets**, compared with 17% in 1975.
- European markets generally derive roughly **70–75% of enterprise value from intangible assets**.
- Asian markets vary significantly by country and sector, but intangible value commonly represents **50–80% of market value** in knowledge-intensive industries.
- Global investment in intangible assets now exceeds **USD 10 trillion annually** and has grown more than three times faster than tangible investment since 2008.

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WHY INVESTORS CARE ABOUT INTANGIBLE ASSETS

Investors Are Buying Future Cash Flows

Rarely because of:

- Buildings
- Vehicles
- Equipment

Typically because of:

- Technology
- Data
- Market position
- Brands
- Know-how
- Customer relationships

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WHAT ARE INTANGIBLE ASSETS?

Non-physical assets capable of creating economic value.

Innovation Assets
- Patents
- Know-how
- Trade secrets
- R&D

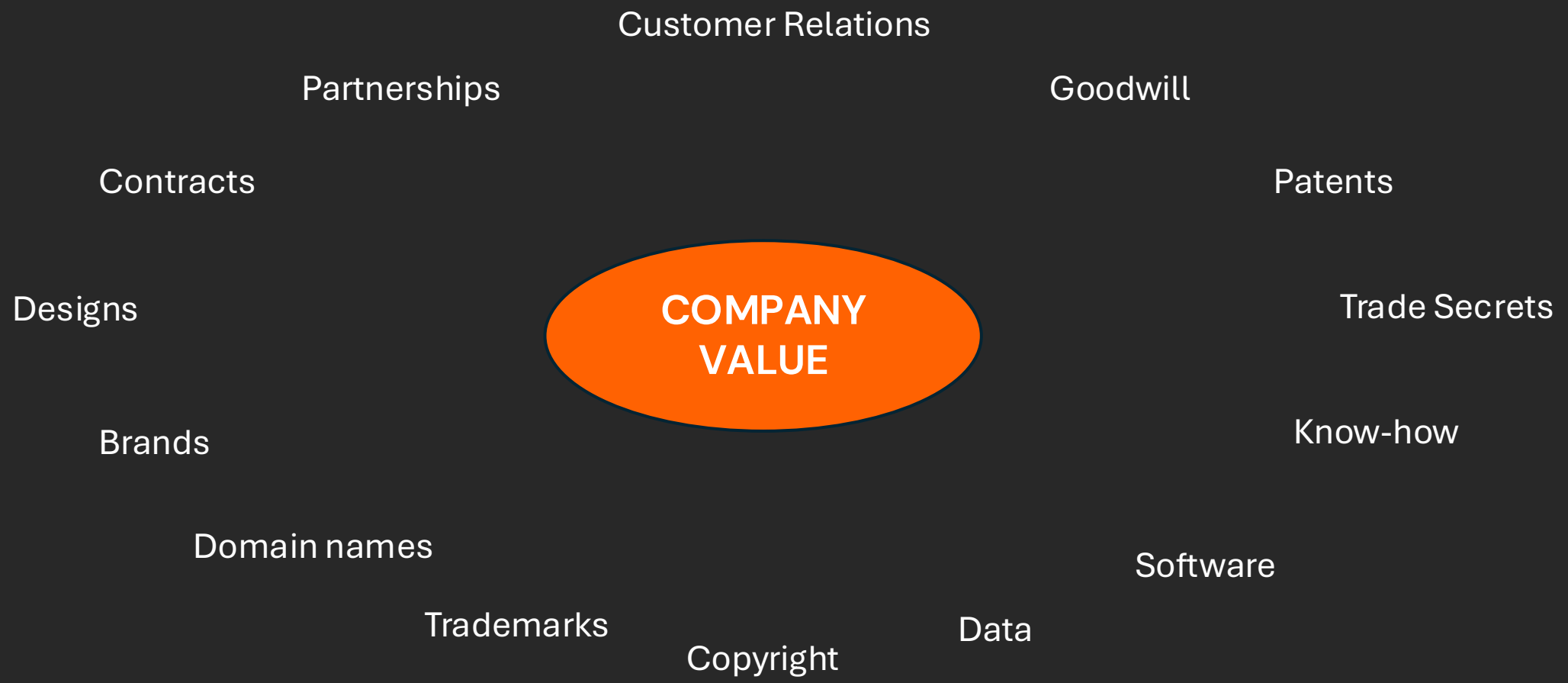
Market Assets
- Brands
- Trademarks
- Customer relationships

Digital Assets
- Software
- Algorithms
- Databases
- AI assets

Business Assets
- Contracts
- Goodwill
- Partnerships
- Reputation

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THE COMPLETE INTANGIBLE ASSET UNIVERSE



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VISIBLE VS HIDDEN COMPETITIVE ADVANTAGES

Visible – Registrable Rights

- Patents
- Trademarks
- Designs
- Registered Copyright

Invisible – Non-Registrable Rights

- Know-how
- Algorithms
- Data
- Customer insights
- Business methods
- Supply chain
- Processes
- Manufacturing
- Pricing strategy
- Algorithms
- Contracts

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AI COMPANIES OWN MORE THAN SOURCE CODE

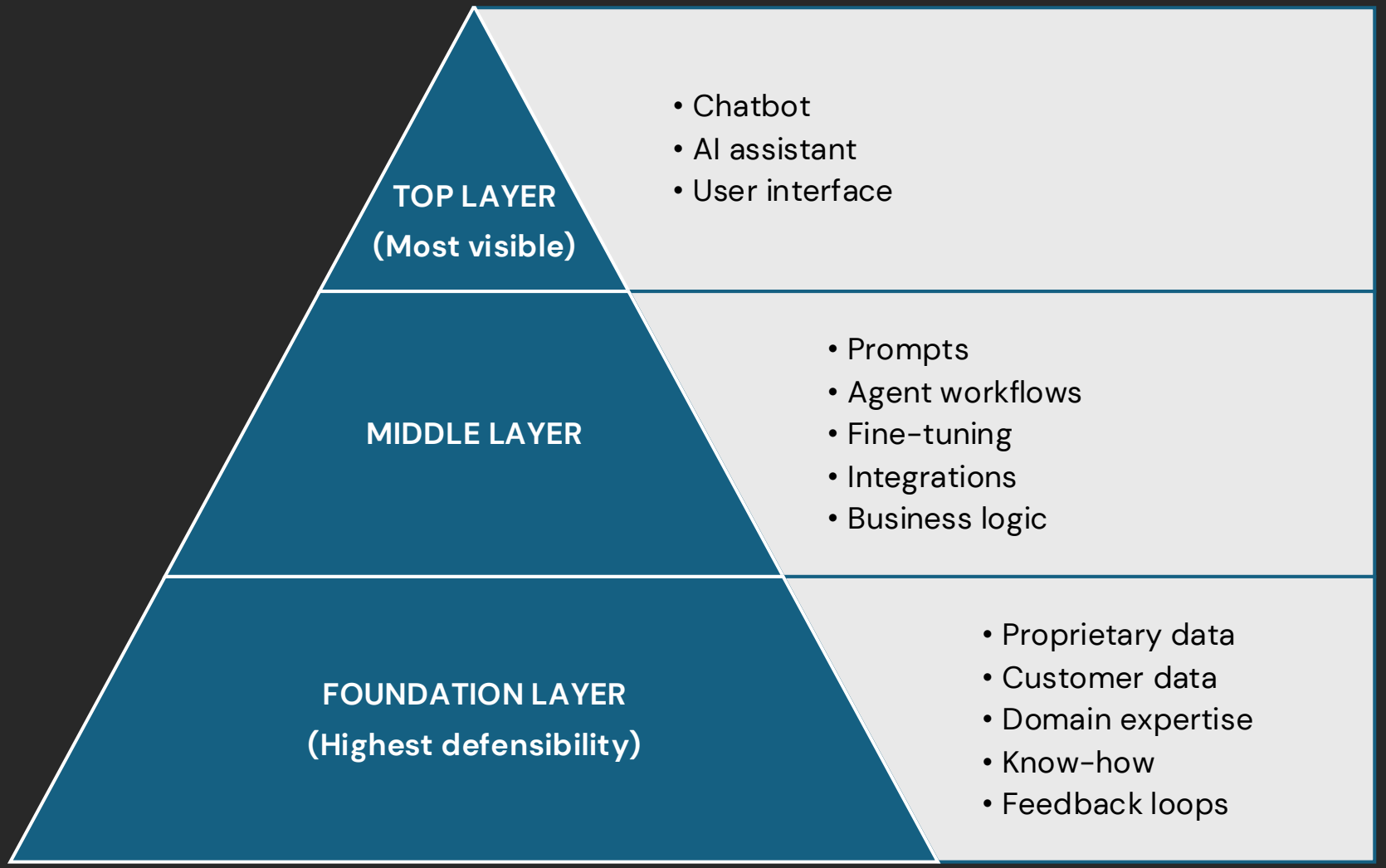
The most valuable asset is not the model. It is the proprietary data, know-how and workflows surrounding the model.

AI Asset	Typical Protection	Strategic Value
Training datasets	Trade Secret, Contracts, Database Rights	★★★★★
Proprietary data collection pipelines	Trade Secret, Know-how	★★★★★
Source code	Copyright, Trade Secret	★★★★★
Models / model weights	Trade Secret, Copyright, Patent (sometimes)	★★★★★
Algorithms	Patent (where applicable), Trade Secret	★★★★
Prompts & prompt libraries	Copyright, Trade Secret	★★★★
AI agents	Copyright, Trade Secret	★★★★
Workflows & automations	Trade Secret, Know-how	★★★★
Fine-tuning methods	Trade Secret	★★★★★
User feedback datasets	Trade Secret, Contracts	★★★★★
Databases	Database rights, Copyright, Trade Secret	★★★★★
Brand & reputation	Trademark	★★★★★

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THE AI VALUE STACK: WHERE IS THE REAL VALUE?



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PATENTS - TO TRANSFORM INNOVATION INTO AN EXCLUSIVE MARKET OPPORTUNITY

- **Definition:** patent is an exclusive right granted for an invention, which is a product or a process that provides, in general, a new way of doing something, or offers a new technical solution to a problem.
- **Strength of protection:** the patent owner has the exclusive right to prevent others from exploiting the patented invention
- **Duration:** Protection last for 20 years
- **Criteria:** world-wide novelty, inventiveness and industrial applicability
- **Examples:** production method, technology, a new composition or material

Value proposition: Creates barriers to entry and supports commercialization.

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TRADEMARKS & BRANDS - PRODUCTS COMPETE. BRANDS WIN.

- **Definition: trademark** is a sign capable of distinguishing the goods or services of one enterprise from those of other enterprises.
- **Strength of protection:** the trademark owner has the exclusive right to prevent others from exploiting the trademark
- **Duration:** Protection generally last for 5-10 years and can be renewed indefinitely.
- **Criteria:** the use of the mark must be demonstrated within the duration period
- **Examples:** words, numbers, drawings, symbols, three-dimensional features, colors, sounds, etc.

Value proposition: Creates trust, recognition and customer preference.

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COPYRIGHT - EVERY SOFTWARE COMPANY IS PARTLY A COPYRIGHT COMPANY

- **Definition: copyright** is protecting original creative expressions.
- **Strength of protection:** a legal right that gives the creator of an original work exclusive control to use, share, sell, make copies, display the copyrighted work publicly and gives the right to the copyright owner to pursue infringement.
- **Duration:** 120 years from date of creation or 95 years from the date of publication whichever expires first.
- **Criteria:** the copyrighted work must be original, must be captured in a tangible medium (fixation) and the copyright only protects the expression not the idea behind.
- **Examples:** software code, documentation, content, training materials, audiobooks, literary works.

Value proposition: Core protection layer for digital businesses.

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TRADE SECRETS – A PROTECTION MEASURE THAT CAN LAST FOREVER

- **Definition:** Trade secrets are intellectual property rights on confidential information which may be sold or licensed.
- **Strength of protection:** protection against unfair competition
- **Duration:** unlimited
- **Criteria:** information that is commercially valuable because it is secret, only to a limited group of people and is subject to reasonable steps taken by the rightful holder of the information to keep it secret
- **Examples:** any technical and business information as long as it fulfills the above criteria

Value proposition: Potentially unlimited duration.

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INTANGIBLE ASSET PORTFOLIO MANAGMENT – PART I

Common Problems

- Assets not identified - You cannot protect what you have not identified.
- Ownership unclear
- Missing documentation
- No accountability
- Lack of strategy
- Lack of internal standards and governance

Recommended Approach

Identify → Prioritize → Protect → Monitor → Commercialize

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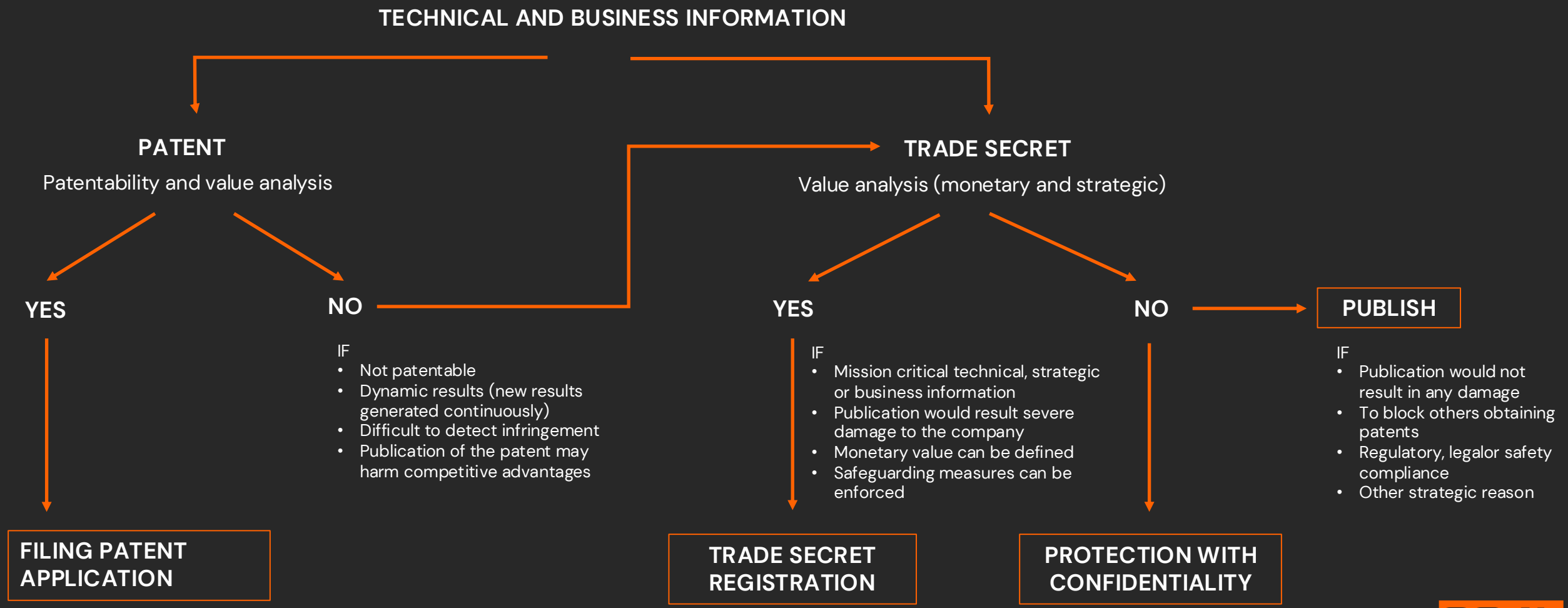
INTANGIBLE ASSET PORTFOLIO MANAGMENT – PART II

1. **Identify**: Map all intangible assets across the business, including know-how, trade secrets, patents, trademarks, software, data, brand assets, customer relationships, and proprietary processes.
2. **Assess Value**: Evaluate each asset's strategic importance, competitive impact, revenue potential, and replacement cost.
3. **Prioritize**: Focus resources on the assets that create the greatest competitive advantage and business value.
4. **Protect**: Implement appropriate protection measures through IP rights, trade secret controls, contracts, governance, cybersecurity, and access management.
5. **Assign Ownership**: Establish clear accountability for maintaining, developing, and protecting each key asset.
6. **Monitor**: Regularly review asset performance, risks, compliance, market relevance, and potential infringement or misappropriation.
7. **Enhance & Develop**: Continuously strengthen assets through innovation, R&D, branding, data enrichment, and knowledge capture.
8. **Commercialize**: Leverage assets through products, services, licensing, partnerships, market differentiation, and valuation growth.
9. **Measure Impact**: Track contribution to revenue, profitability, enterprise value, investment readiness, and competitive positioning.
10. **Repeat & Expand**: Maintain an ongoing portfolio management cycle to identify new assets and maximize long-term value creation.

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INTANGIBLE ASSET AUDIT



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RISKS & THREATS

INTERNAL THREATS

- **Employee turnover**: Departing employees may take valuable know-how to competitors.
- **Insider theft**: Employees or contractors may intentionally steal confidential information.
- **Excessive access rights**: Too many people having access increases leakage risks.
- **Lack of awareness**: Untrained employees may accidentally disclose trade secrets.
- **Weak policies and procedures**: Poor governance creates protection gaps.
- **AI and technology misuse**: Sensitive information may be exposed through unauthorized tools or platforms.
- **Poor offboarding processes**: Former employees may retain access to confidential information.

EXTERNAL THREATS

- **Cyberattacks**: Hackers target proprietary information for financial or strategic gain.
- **Corporate espionage**: Competitors may seek access to confidential business information.
- **Third-party suppliers and contractors**: External partners can become sources of data leakage.
- **Social engineering and phishing**: Attackers manipulate individuals into revealing sensitive information.
- **Physical theft**: Devices, documents, or prototypes containing trade secrets may be stolen.
- **Reverse engineering**: Competitors may analyze products to uncover proprietary know-how.
- **Business collaborations and partnerships**: Shared information can be misused or inadequately protected.

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AI CONTRACTS: THE 10 TERMS THAT DECIDE WHO OWNS THE VALUE

SUPPLIERS, CONTRACTORS & AI PROVIDERS

1. Who owns code developed by contractors?
2. Are inventions assigned to the company?
3. Can the provider train on your data?
4. Does the provider retain rights to prompts?
5. Can data be transferred outside your jurisdiction?
6. Who owns improvements and derivative works?
7. Confidentiality obligations
8. Cybersecurity requirements
9. Data retention/deletion rights
10. Exit and migration rights

CUSTOMERS

1. Ownership of customer data
2. Ownership of generated outputs
3. Rights to use customer data for model improvement
4. Liability for AI-generated content
5. Indemnification provisions
6. Service level commitments
7. Regulatory compliance obligations
8. Audit rights
9. Confidentiality
10. Termination and portability rights

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INTANGIBLE ASSET VALUATION

1. Cost Approach
Values an intangible asset based on the cost required to create, replace, or reproduce it today, considering development time, resources, and investment.
Best suited for early-stage assets or when reliable market and income data are unavailable.
Example: *Estimating the value of a proprietary software platform based on the total R&D, engineering, testing, and implementation costs incurred to build it.*

2. Market Approach
Values an intangible asset by comparing it to similar assets that have been sold, licensed, or transacted in the marketplace.
Best suited when comparable market data and transaction benchmarks exist.
Example: *Valuing a trademark by analyzing royalty rates and sale prices from comparable trademark licensing deals in the same industry.*

3. Income Approach
Values an intangible asset based on the future economic benefits or cash flows it is expected to generate, discounted to present value.
Often considered the most relevant method for strategic and commercially active intangible assets.
Example: *Valuing a patented medical diagnostic technology based on projected future revenues, licensing income, and cost savings generated over its useful life.*

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COMMERCIALIZATION & TRANSACTIONS – MONATIZATION PATHS I

1. Out-Licensing
Grant third parties the right to use your IP in exchange for royalties, milestone payments, or fees.
Value Proposition: Generates recurring revenue without requiring additional operational investment.
Example: Licensing a patented diagnostic technology to global healthcare providers.

2. In-Licensing
Acquire rights to external IP to accelerate product development, market entry, or competitive positioning.
Value Proposition: Reduces development time and expands capabilities without internal R&D costs.
Example: Licensing proprietary biomarkers for integration into a new diagnostic platform.

3. Technology Transfer
Transfer technology, know-how, or IP to another organization for commercialization.
Value Proposition: Converts dormant innovation into immediate financial returns.
Example: A university transferring a patented medical technology to a biotech company.

4. Joint Ventures
Create a shared entity where partners contribute complementary IP, expertise, and resources.
Value Proposition: Shares risk while accelerating commercialization and market access.
Example: A startup and a multinational jointly commercializing an innovative healthcare solution.

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COMMERCIALIZATION & TRANSACTIONS – MONATIZATION PATHS II

5. Strategic Alliances
Collaborate with partners to leverage each party's intangible assets without forming a separate company.
Value Proposition: Expands reach, capabilities, and revenue opportunities with limited capital investment.
Example: A software company integrating its platform into a larger healthcare ecosystem.

6. Franchising
License a proven business model, brand, processes, and know-how to franchisees.
Value Proposition: Enables rapid market expansion with lower capital requirements.
Example: A healthcare clinic concept expanding through regional franchise operators.

7. IP Sale or Assignment
Sell ownership of an intangible asset outright to another organization.
Value Proposition: Generates immediate liquidity and monetizes non-core assets.
Example: Selling a patent portfolio that no longer aligns with the company's strategy.

8. Royalty-Based Partnerships
Monetize assets through revenue-sharing arrangements tied to commercial performance.
Value Proposition: Creates scalable upside while retaining ownership.
Example: Receiving royalties based on sales of a product using proprietary technology.

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COMMERCIALIZATION & TRANSACTIONS – MONATIZATION PATHS III

9. Data Commercialization
Monetize proprietary datasets, analytics, or insights while maintaining compliance and privacy controls.
Value Proposition: Creates new revenue streams from existing information assets.
Example: Licensing anonymized healthcare data for research purposes.

10. Brand Extension
Leverage a trusted brand to enter new markets, products, or services.
Value Proposition: Increases revenue while maximizing existing brand equity.
Example: Expanding a recognized healthcare brand into diagnostics, wellness, and telemedicine.

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FUNDRAISING & INVESTOR READINESS – KEY DD QUESTIONS

Do you own the technology? Clear ownership of all IP, inventions, data, and know-how must be documented.
Who owns the intellectual property? Investors verify that founders, employees, consultants, and partners have properly assigned IP rights.
Can competitors copy it? Strong patents, trade secrets, data advantages, and know-how create barriers to entry.
Do you have freedom to operate (FTO)? The company must demonstrate that commercial activities do not infringe third-party rights.
Can the business scale defensibly? Sustainable competitive advantages must strengthen as the company grows.
What are the company's key intangible assets? Investors want visibility into the assets driving future value creation.
How are trade secrets protected? Confidentiality controls, access management, and governance should be in place.
Are there any IP disputes or litigation risks? Existing or potential legal challenges can significantly affect valuation.
How dependent is the business on key individuals? Critical knowledge concentrated in a few people increases risk.
What is the commercialization strategy? Investors seek clear pathways to revenue through products, licensing, partnerships, or market expansion.
How strong is the brand and market position? Brand recognition, customer loyalty, and reputation can become significant value drivers.
What evidence supports the valuation? Investors expect credible data linking intangible assets to future revenue and growth.

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FUNDRAISING & INVESTOR READINESS – KEY AI DD QUESTIONS

Who owns the training data?

Can you prove rights to use the data?

Which third-party AI models are used?

What happens if a model provider changes terms?

Do contractors assign all AI-related IP?

Is there an inventory of prompts, agents and workflows?

Are AI-generated assets documented and governed?

Can the company continue operating if a vendor relationship ends?

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THE MOST COMMON VALUE LEAKS

1. Contractor-Created IP
Developer built the system.
Company never obtained assignment.
Result: Contractor may own critical IP.

2. Proprietary Data Stored in Third-Party AI Tools
Sensitive information uploaded into AI systems without governance.
Result: Loss of control and confidentiality risk.

3. No Ownership of Prompt Libraries
Employees create valuable prompts and workflows.
Nothing documented.
Result: Critical know-how leaves with employees.

4. No Documentation of AI Assets
Models, datasets and workflows not inventoried.
Result: Investor due diligence problems.

5. Customer Data Rights Are Unclear
Contracts do not define ownership and usage rights.
Result: Commercialization restrictions.

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RED FLAGS THAT CAN (AND WILL) KILL AN INVESTMENT

- IP ownership is unclear or disputed
- Founder-developed technology was never formally assigned to the company
- No patents, trade secret controls, or protection strategy
- Significant freedom-to-operate risks
- Dependence on a single founder or inventor
- Weak documentation of core technology or know-how
- Unprotected AI, data, software, or proprietary algorithms
- Ongoing or threatened IP litigation
- No commercialization roadmap
- Competitors can easily replicate the solution
- Lack of customer validation or market traction
- Poor cybersecurity and data governance practices

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CALL TO ACTION – INTANGIBLE ASSETS ARE NO LONGER OPTIONAL. THEY ARE YOUR COMPETITIVE ADVANTAGE.

1. Identify – Map the assets that create value.
Identify your patents, trade secrets, data, software, brands, know-how, customer relationships, and proprietary processes.
Punchline: *You cannot manage, protect, or monetize assets you have not identified.*

2. Protect – Apply the appropriate protection strategy.
Use trade secret controls, contracts, IP registrations, cybersecurity, governance, and employee awareness programs.
Punchline: *Every unprotected intangible asset is a potential source of value leakage.*

3. Leverage – Use assets to drive growth, valuation, and fundraising.
Commercialize through products, licensing, partnerships, market differentiation, and stronger investor positioning.
Punchline: *The highest-value companies turn intangible assets into measurable business outcomes.*

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KEY TAKEAWAYS

- Intangible assets are not merely legal assets. They are strategic business assets.
- Identify them. Protect them. Leverage them.
- Organizations that act today will build stronger competitive advantages, attract investment more effectively, and capture greater long-term enterprise value.

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BUILD YOUR OWN INTANGIBLE ASSET (IA) PORTFOLIO

Name of IA	Why is it valuable?	IA Value (USD)	Type of IA	Who owns it?	Protection measures
	• Lower cost • Increased margins • Efficiency • Unique product • Standardization • …				

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Let´s build **competitive advantages** together!

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